

Ved Prakash Soni v. Executive Engineer, Electricity Distribution Division

High Court of Judicature at Allahabad · Division Bench · 27 May 2016 · Writ-C No. 25782 of 2016 · **Writ allowed; provisional assessment notice quashed; fresh assessment directed**

HEADNOTE

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must specify a date for hearing in the notice itself and must disclose the basis of the assessed amount. A notice that does neither is not in accordance with the Code and does not afford the opportunity contemplated by para 6.8(b). The Division Bench quashed the impugned notice and directed a fresh provisional assessment, with a reasoned final order after considering objections, following Ashok Kumar.

FACTUAL SUMMARY

The petitioner, a consumer, challenged recovery of a provisional assessment of Rs 40,852. He contended that he had not received the provisional assessment notice dated 6 November 2015, could not file a reply, and the distribution licensee treated the assessment as final and issued a recovery certificate. Counsel submitted that Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005 required the notice itself to fix a date for hearing. The Division Bench examined that notice and the impugned notice dated 18 November 2015.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice under Clause 6.8(b) must itself specify a date for hearing; a notice that indicates no hearing date is not in accordance with the Code and does not afford the opportunity in para 6.8(b). ¶ 4,7
2. The provisional assessment notice must disclose the basis on which the consumer has been assessed to the stated sum. ¶ 6
3. Where the notice is not in accordance with the Code, it is liable to be quashed and a fresh provisional assessment served, the final order to consider objections and give reasons meeting them. ¶ 8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis

HOLDING

A provisional assessment notice that neither specifies a date for hearing, as the Court read Clause 6.8(b)(1) to require, nor discloses the basis of the assessed amount does not afford the opportunity of hearing under para 6.8(b). Such a notice is not in accordance with law and is liable to be quashed, with a direction to serve a fresh provisional assessment and to pass a reasoned final assessment after considering the consumer's objections, in light of Ashok Kumar. ¶ 4,6-8

FLAG Court cited Clause 6.8(b)(1) for the hearing-date requirement and para 6.8(b) for opportunity; keyed to catalog hit UP-2005::6.8(b).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT OF RS 40,852 AND WHETHER UNAUTHORISED USE OR THEFT WAS MADE OUT

Notice quashed; fresh provisional assessment and reasoned final order directed. Liability not determined. ¶ 8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i>			court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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2008 (6) ADJ 660 (DB)				
SCJ-1469 · Ved Prakash Soni v. Executive Engineer, Electricity Distribution Division · · Supply Code Jurisprudence				
<i>A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.</i>				